

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, September 15, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03779	The Village of Los Banos, Unit No. 2 Owners Association vs K. Hovnanian Communities, Inc., et al.
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Motion for Good Faith Settlement

Defendant/Cross-Complainant JELD-WEN, Inc.'s unopposed motion for determination of a good faith settlement is GRANTED. Having reviewed the moving papers and supporting declaration, the Court finds that the settlement between JELD-WEN and Plaintiff is in good faith pursuant to Code of Civil Procedure section 877.6.

The Court will sign the order previously lodged on August 18, 2026, approving the settlement, and dismissing, with prejudice, all cross-complaints for equitable indemnity and contribution filed in this action against JELD-WEN.

24CV-06281	Kakkar Hotel Group, LLC vs Hamid Abtahi, et al.
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Order to Show Cause Re: Sanctions

Having reviewed the declaration of attorney Ginny Bedi, filed September 2, 2026, the Court finds GOOD CAUSE NOT TO ORDER SANCTIONS against Plaintiff's counsel for

their non-appearance at the case management conference on August 17, 2026. No appearance is required.

Case Management Conference

CONTINUED on the Court's own motion to June 28, 2027, at 10:00 a.m. in Courtroom 8. According to the CMC statement filed by Plaintiff on September 11, 2026, the parties are working on a settlement agreement and pursuing mediation. Should a settlement be reached prior to the above date, a notice of settlement must be filed and the CMC will be vacated in favor of an OSC re: Dismissal.

25CV-02700

Fernando Nepita vs Sunlight Financial

Order to Show Cause Re: Sanctions Plaintiff FTA at CMC and file CMC statement

Appearance required. Plaintiff is ordered to personally appear and show cause why sanctions should not issue for his failure to appear at Case Management Conferences on December 29, 2025, and August 17, 2026, failure to file CMC statements as required by the local rules of court, and for failing to serve Defendant with the summons and complaint in the more than 16 months since this action was filed.

Case Management Conference

Appearance required.

25CV-02996

Chad Baxter, et al. vs Merced 144 LP

Status Conference

CONTINUED to March 9, 2027, at 8:15 a.m. in Courtroom 8, pursuant to the joint statement filed by counsels on September 1, 2026. The parties previously agreed to a stay of proceedings to complete Right to Repair Act pre-litigation requirements. That stay will remain in effect pending the outcome of the status conference on March 9, 2027, unless the parties submit a stipulation and order to lift the stay, supported by declarations that the pre-litigation requirements have been completed, in advance of that hearing date.

25CV-03041

Ramon Santoyo, et al. vs QSI, LLC

Status Conference

Appearance required. Appear to address status of arbitration proceedings ordered pursuant to the stipulation of the parties on February 18, 2026.
